VINEYARD
STAY CONNECTED

# Candidate Name on Ballot – Summary Guide

(Utah Code § 20A-6-109)

Under Utah Code 20A-6-109 a candidate's name shall appear on the ballot as the Legal First Name + Legal Last Name. Use of a middle name, nickname, etc., can be used if the following requirements are met.

## Default Name Format

- Legal First Name + Legal Last Name

## Using Your Middle Name Instead of First Name

Allowed if all of the following are met:

1. You normally go by your middle name (or a common derivative).
2. By 5:00 p.m. on the last day of the declaration of candidacy period, you submit:
    - A written request specifying the middle name or derivative.
    - An affidavit by you, under penalty of perjury, affirming you are commonly known by that name.
    - Affidavits, under penalty of perjury, from five non-family county residents stating you are commonly known by that name.

## Using a Nickname

Allowed if all of the following are met:

1. The nickname may not:
    - Imply you are someone else (living or dead).
    - Be a slogan.
    - Associate the candidate with an economic, religious, political, or other group, issue, or opinion.
    - Be offensive, profane, or spurious.
    - Be a title, rank, degree, certification, job description, or similar designation.

2. By 5:00 p.m. on the last day of the declaration of candidacy period, you submit:
    - A written request with the desired nickname and placement.
    - An affidavit by you, under penalty of perjury, affirming common use and you are not using the nickname to gain an advantage on the ballot.
    - Affidavits, under penalty of perjury, from five non-family county residents that you are generally known by that nickname.

## Nickname Placement Options

You may place the nickname:

- Before or after your legal first name
- Before or after your legal middle name if on the ballot
- In place of your legal first name

## Simplified Nickname Use

If the nickname is a common short form of your legal first name (e.g., Mike for Michael), you may request it without affidavits—just a written request by 5 p.m. on the day the declaration of candidacy period ends. You may use your middle name initial between your first and last name or use your first initial before your middle name.

## Rejected or Ignored Requests

• Election Officer must respond within 5 business days.
• If rejected or no response, you may appeal to court within 5 days.

## Name Conflicts

• Election Officer may add a legal middle name or negotiate another differentiation if candidates have similar names.

## Ballot Order Rules

• Ballot order is based on a randomized alphabet list using your legal surname.
• Legal name governs ballot placement, even if a nickname or middle name is used.

**Candidate Name Variation Request Form** (see attached)

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# CANDIDATE NAME VARIATION REQUEST FORM

## Candidate Information

| Legal First Name | Legal Middle Name | Legal Last Name |
|---|---|---|
| | | |

## Preferred Name for Appearance on Ballot

| First Name | Middle Name | Last Name |
|---|---|---|
| | | |

## Name Variation (Please Select One)

- ☐ Legal Middle Name/Common Derivative in place of Legal First Name
- ☐ Nickname in place of/ in addition to Legal First Name

## Candidate Affidavit

I do solemnly swear under the penalty of perjury that I am generally know by acquaintances in the county in which I reside by the name listed above rather than my legal name. My requested use of this preferred name is not intended to gain advantage on the ballot.

| Signature | Date |
|---|---|
| | |

**Resident Affidavits** (Must be signed by residents of the candidate's county of residence who are not immediate family members of the candidate.)

Printed Name: _____

Signature: _____ Date: _____

I do solemnly swear under the penalty of perjury that the candidate above is generally known by acquaintances in the county in which they reside by the name listed above rather than their legal name.

Printed Name: _____

Signature: _____ Date: _____

I do solemnly swear under the penalty of perjury that the candidate above is generally known by acquaintances in the county in which they reside by the name listed above rather than their legal name.

Printed Name: _____

Signature: _____ Date: _____

I do solemnly swear under the penalty of perjury that the candidate above is generally known by acquaintances in the county in which they reside by the name listed above rather than their legal name.

Printed Name: _____

Signature: _____ Date: _____

I do solemnly swear under the penalty of perjury that the candidate above is generally known by acquaintances in the county in which they reside by the name listed above rather than their legal name.

Printed Name: _____

Signature: _____ Date: _____

I do solemnly swear under the penalty of perjury that the candidate above is generally known by acquaintances in the county in which they reside by the name listed above rather than their legal name.